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File No: EXP202213723

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 12, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202213723

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 29/12/2022, the Director of the Spanish Agency for Data Protection sent a letter to the General Subdirectorate of Data Inspection indicating the following:

"It has come to the attention of this Agency, through communication ***COMMUNICATION.1, a possible infringement in the processing of personal data related to the facts described below.

The informant, who does not identify themselves, reports the dissemination of the image of a minor aged 16, without her consent, on various adult content websites, while she is having a conversation with a man lying on a bed, face down and naked.

It is stated that the videos can be accessed using the search criterion: "SEARCH.1" or through 6 links related to the domains DOMAIN.1, DOMAIN.2, and ***DOMAIN.3.

Only the lower part of the minor's face is visible, but her voice can be heard. The girl identifies herself as "B.B.B." and the man as "A.A.A." The man tells her that he is XX years old.

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The informant, who claims to have no connection with the minor, provides two contact methods:

[...]

Therefore, the General Subdirectorate of Data Inspection is urged to initiate ex officio Preliminary Investigation Actions aimed at verifying these facts."

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

1) By means of an action taken by this Agency on 09/03/2023, the following verifications were incorporated into the inspection actions:

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Conducted on 03/01/2023:

- DOMAIN.1. A video exists in which a girl is shown, of whom only the lower part of her face is visible and her voice can be heard, talking to a naked man. She says her name is "B.B.B." and he, "A.A.A." and that he is XX years old. The age of the girl is not stated.

- ***URL.1. This URL contains the same video described above.

- ***URL.2. This URL contains the same video described above.

- DOMAIN.1. A different but similar video exists of the same girl talking to the same naked man.

- The registrar of the domain DOMAIN.2 and its URL is ***URL.3.

- The registrar of ***DOMAIN.3 is DANESCO TRADING LTD and its URL is ***URL.4.

- The URL DOMAIN.1 indicates that the responsible party for the website DOMAIN.1 is WEBGROUP CZECH REPUBLIC, A.S. and its postal contact address.
- The registrar of the domains ***DOMAIN.3 and DOMAIN.2 is NAMECHEAP INC.
- The videos from the domains DOMAIN.1, DOMAIN.2, and ***DOMAIN.3 have been removed.
- Screenshots of the Privacy Policy and Terms of Service of DOMAIN.1.

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- Request for the removal of the videos in question published on ***DOMAIN.3 through a form and email.
- Request for the removal of the videos in question on DOMAIN.1 through a form and confirmation of the submission.
- Request via email from the inspection services for the removal of the videos in question published on DOMAIN.2 through email.

□

Conducted on 09/01/2023:

- In the URL ***URL.5 one of the previous videos is present.
- Request via email from the inspection services for the removal of the video published at the address ***URL.6.

2) On 03/01/2023 and 09/01/2023, this Agency issued 4 requests for the removal of the videos in question that appear at the following addresses:

- DOMAIN.1
- DOMAIN.1
- DOMAIN.3
- DOMAIN.3
- ***URL.7
- ***URL.8

3) On 11/01/2023, this Agency issued a request for the removal of the video that appears at the address ***URL.9.

4) By means of an action taken by this Agency on 11/01/2023, the following verifications were incorporated into the inspection actions:

- Content of the URL ***URL.10
- Email sent by the inspection services to ***EMAIL.1 requesting the removal of the video published at the address ***URL.11

5) By means of an action taken by this Agency on 23/01/2023, the following verifications were incorporated into the inspection actions:

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- It is verified that one of the videos in question is published at the address ***URL.12.
- Email sent by the inspection services to ***EMAIL.2 requesting the removal of the video published at the address ***URL.13.

6) On 01/23/2023, this Agency issues a request for the removal of the video published at the address ***URL.14.

7) On 01/23/2023, it is verified that the referenced videos appear as search results on GOOGLE when searching for the term “SEARCH.1” and “SEARCH.2”.

8) On 01/24/2023, this Agency issues a resolution adopting a provisional measure requiring GOOGLE SPAIN, S.L. (GOOGLE LLC) to remove or de-index the following electronic addresses:

- ***URL.15
- ***URL.16
- ***URL.17
- ***URL.18
- ***URL.19

9) By diligence carried out by this Agency on 01/24/2023, it is verified that the video published on XXXXXXXXXX has been removed.

10) By diligence carried out by this Agency on 01/27/2023, it is verified that the 5 search results listed in the provisional measure issued on 01/24/2023 have been deleted.

11) On 01/29/2023, this Agency receives the response prepared by GOOGLE LLC to the provisional measure adopted on 01/24/2023:

“[...]

Google LLC has proceeded to remove from the results provided by the search engine in response to the queries “SEARCH.2”, “SEARCH.1” and “SEARCH.3”, the thumbnail images related to the photographs originally hosted at:

- ***URL.20
- ***URL.21
- ***URL.22
- ***URL.23

[...]”

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12) On 01/31/2023, this Agency issues 2 requests for the removal of the videos published at the addresses ***URL.24 and ***URL.25.

13) By diligence carried out by this Agency on 01/31/2023, the following verifications are made:

- The videos in question appear as new search results on GOOGLE when searching for the term “SEARCH.1”, previously undetected. One of the search results corresponds to the domain XXXXXX which maintains a thumbnail of the video, but when clicking on the video, it has been deleted. Another search result corresponds to the domain XXXXXX, which maintains a frame of the video but does not play when clicked.

- Request via form and email (***EMAIL.3 and ***EMAIL.4) from the inspection services for the removal of the videos published at:

- o ***URL.26
- o ***URL.27

14) On 02/01/2023, this Agency issues a resolution adopting a provisional measure requiring GOOGLE SPAIN, S.L. (GOOGLE LLC) to remove or de-index the following electronic addresses:

- ***URL.28
- ***URL.29
- ***URL.30
- ***URL.31
- ***URL.32

15) On 03/07/2023, this Agency receives the response prepared by GOOGLE LLC to the provisional measure adopted on 02/09/2023:

“[...]

Google LLC has proceeded to remove from the results provided by the search engine in response to the queries “SEARCHER.1”, “SEARCH.1” and “SEARCH.2”, the thumbnail images related to the photographs originally hosted at:

- ***URL.33
- ***URL.34

- ***URL.35

We would like to note that the URLs mentioned above, which are the subject of this request, are different from those that were the subject of the two previous requests on January 24 and 31, 2023, which were effectively addressed.

(...)"

16) On 04/18/2023, this Agency requests XVIDEOS to remove the videos in question published at the addresses DOMINIO.1.

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17) On 04/19/2023, the request for collaboration IMI ***IMI.1 is registered with the authority of ***COUNTRY.1 to ask the owner of the platform DOMINIO.1 for the IP addresses from which the videos were uploaded to the platform, obtaining the following response:

"[...]

Video investigation information

***URL.36

***URL.37

URL (deleted):

Title: XXXXXXXXXX

Description:

Length:

Size:

Upload date: XXXXXXXXX

Delete date: XXXXXXXXX

IP: Spain ***IP.1

***URL.38

***URL.39

URL (deleted):

***URL.40

Title: XXXXXXXXX

Description:

Length:

Size:

Upload date: XXXXXXXXX

Delete date: XXXXXXXXX

IP: Spain ***IP.2

In the same response, and in relation to the user profile ***PROFILE.1, the log records show the login operation dated "DATE.1, XXXXXXXXX" and the associated IP address ***IP.3.

18) On 04/19/2023, this Agency sends a request for information to DANESCO TRADING LTD by international postal mail. The shipment is returned by the postal service.

19) On 05/25/2023, this Agency receives the response prepared by the European Data Protection Office (EDPO) to the information request of 04/19/2023, providing the identification and contact details of the person responsible for the registration of the domains DOMINIO.3 and DOMINIO.2, which are located in ***COUNTRY.2.

20) On 07/31/2023, this Agency receives the response prepared by AIRSIP TELECOMUNICACIONES, S.L. to the information request of 07/31/2023, providing the following information:

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- Name, surname, and postal address associated with the IP address ***IP.4 on date FECHA.2.
- Name, surname, and postal address associated with the IP address ***IP.5 on date FECHA.3.
- Both contacts being the same and being as follows:
- NAME: A.A.A.
- SURNAME: X.X.X
- ID: ***NIF.1
- POSTAL ADDRESS: ***DIRECCIÓN.1

21) By diligence carried out by this Agency on date 28/08/2023, it is verified that the image at ***URL.41 is no longer published. However, the thumbnail at ***URL.42 is still published.

22) Conclusions: the reported videos and the images found associated with the videos have been removed, except for one of the thumbnails (small image) despite having also requested its removal. Additionally, the GOOGLE search results found have been removed, but new replicas continue to appear constantly in those search results.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

The voice and image of a person, according to Article 4.1 of the GDPR, are personal data as they make the individual identifiable, and their protection is therefore the subject of said GDPR:

“‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;”

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The voice is a personal attribute unique and individual to each natural person, defined by its pitch, intensity, and timbre. Endowed with unique and distinctive traits that directly individualize it, associating it with a specific individual, it is shaped when speaking, allowing one to discern, through it, the age, sex, health status of the individual, their mannerisms, culture, origin, hormonal, emotional, and psychological state. Elements of expression, idiolect, or intonation are also considered personal data when taken together with the voice.

Therefore, the report 139/2017 from the Legal Office of this Agency states that “the image, as well as the voice of a person, is personal data, just as any information that allows determining, directly or indirectly, their identity will be.”

In fact, the ruling of the National Court dated March 19, 2014 (rec. 176/2012) states that “the voice of a person constitutes personal data, as deduced from the definition provided by Article 3.a) of the LOPD, as ‘any information relating to an identified or identifiable natural person,’ a matter that is not

controversial.”

Article 4.2 of the GDPR defines ‘processing’ as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.”

The inclusion of a person's voice and image in publications that identify or make a person identifiable constitutes processing of personal data and, therefore, the data controller carrying out such processing is obliged to comply with the obligations established for data controllers in the GDPR and in the LOPDGDD.

III

Legality of the processing of personal data

The principles governing processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: “Personal data shall be:

a) Processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency);
(...)”

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the lawful processing of personal data are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

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a) the data subject has given their consent to the processing of their personal data for one or more specific purposes;

a) the processing is necessary for the performance of a contract in which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

a) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

b) the processing is necessary to protect vital interests of the data subject or of another natural person;

c) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

d) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

Furthermore, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or by virtue of another Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of executing a contract to which the data subject is a party or for the purpose of taking steps at the request of the data subject prior to entering into a contract.”

The present case is initiated because this Agency is aware of the dissemination of a video on several adult content websites, in which a girl, apparently underage, and an adult man are seen having a conversation via remote chat. In the upper box of the application, part of the girl's face (from the nose down) can be seen, and on the lower screen, an older man lying face down and naked; however, the voices of both are clearly audible.

From the video in question, phrases can be extracted such as:

“What's your name? (the man asks) B.B.B. (the girl replies). And you? (the girl asks) A.A.A. (the man replies). Nice to meet you.

And how old are you? (the girl asks) XX (the man replies)

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(...).”

After the preliminary investigative actions listed in the “Facts” section of this initiation agreement, the competent operator provided information regarding the IP from which the videos were uploaded to the DOMINIO.1 platform:

- DOMINIO.1

- DOMINIO.1

The identity of the person associated with that IP (**IP.1) is A.A.A., with ID ***NIF.1 and residing at ***ADDRESS.1. Thus, the name of the person responsible for the IP from which the videos were uploaded to the mentioned platform matches that of the man appearing in the video.

Regarding the other platforms where the reported videos were also published, the Inspection Services of this Agency have not contacted them as it was not possible to notify the requirements, among other reasons.

Consequently, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the processing of personal data carried out by A.A.A., with ID ***NIF.1, in relation to the girl, apparently underage, has been carried out without a legitimate basis as set out in Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement of Article 6.1 of the GDPR

If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could constitute the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the limitation period, Article 72.1 “Very serious infringements” of the LOPDGDD states:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year limitation period for infringements that constitute a substantial breach of the articles mentioned therein and, in particular, the following:

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a) (...)

a) The processing of personal data without any of the lawful conditions for processing established in Article 6 of Regulation (EU) 2016/679; (...).”

V

Proposal for sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure,

and without prejudice to what results from the instruction, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR: The aggravating circumstances are:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the level of damage and harm suffered; the complained party has publicly disseminated a video of sexual content featuring a girl, apparently a minor, without censoring her voice, which allows for her identification or makes her identifiable (Article 83.2.a) GDPR).
 - The conduct of the infringer reflects a clear intention to denigrate the complaining party, as the video is made public on at least one adult content website whose dissemination is immediate (Article 83.2.b) GDPR).
 - The type of data processed, the voice of the girl in a video of sexual content (Article 83.2.g) GDPR).
- The balance of the circumstances considered allows for an initial assessment of a fine of €10,000.00 (ten thousand euros) for the infringement of Article 6.1 of the GDPR.

VI

Imposition of measures

If the infringement is confirmed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”, in the resolution adopted, A.A.A., with NIF ***NIF.1, may be required to notify this Agency within the stipulated period that it has adopted the appropriate measures to adjust its actions to the regulations mentioned in this act, without prejudice to others that may arise from the instruction of the procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
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IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT C.C.C. as instructor and D.D.D. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the sanction that may correspond would be an ADMINISTRATIVE FINE of €10,000 (ten thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document. If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in the present procedure. With the application of this reduction, the sanction would be established at €8,000 (eight thousand euros), resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of the present procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be established at €8,000 (eight thousand euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution.

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In this case, if both reductions were to be applied, the amount of the sanction would be set at €6,000 (six thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above, €8,000 (eight thousand euros), or €6,000 (six thousand euros), you must make the payment by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code:

XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the bank CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Additionally, you must send the proof of payment to the General Subdirectorato of Inspection to continue with the procedure in accordance with the amount deposited.

The sanctioning procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGGD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On December 21, 2023, the respondent has proceeded to pay the sanction in the amount of €6,000, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

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Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213723, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to A.A.A..

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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